

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

WAN HAI LINES, LTD., *Respondent*.

DOCKET NO. 26-06

Served: July 28, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

**ORDER HOLDING IN ABEYANCE RESPONDENT'S PARTIAL MOTION TO DISMISS AND
COMPLAINANT'S MOTION TO FILE AMENDED COMPLAINT**

On May 20, 2026, the Commission issued a Notice of Filing of Complaint and Assignment ("Notice") for this proceeding. On June 15, 2026, Respondent Wan Hai Lines, Ltd. ("Wan Hai") filed Respondent's Partial Motion to Dismiss and For Entry of an Order Requiring the Filing of an Amended Complaint ("PMTD"). On July 1, 2026, SEA opposed the PMTD as moot and moved to file an amended complaint, which it attached (respectively referred to as, "Opposition" and "MTA").

By email dated July 28, 2026, the parties stated that they've reached a settlement in principle, and they agree that the pending motions should be held in abeyance while they memorialize their agreement, although they do not state for how long, and they did not file a motion.¹ The Commission has a strong and consistent policy of encouraging settlement and allowing the parties adequate time to finalize such an agreement is warranted here. *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002); *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1091 (ALJ 1978). See also *Ellenville Handle Works, Inc. v. Far Eastern Shipping Co.*, 20 S.R.R. 761, 762 (ALJ 1981). Accordingly, I will treat the email as a joint motion to hold the pending motions in abeyance for two weeks from today's date. If the parties require more time to finalize their settlement agreement, they must file a motion with the Secretary prior to the expiration of the two-week period. It is **ORDERED** that the pending motions in this proceeding are **HELD IN ABEYANCE** through August 11, 2026.



Linda S. Harris Crovella
Administrative Law Judge

¹ The Initial Order states: "[a]ny request for action by the Commission or presiding officer must be made by motion, not by letter or email request or as part of a joint status report." Initial Order at 4.